

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Trevor Hackett	Team: Squad #13	CCRB Case #: 201909997	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 11/07/2019 5:16 PM	Location of Incident: In front of 998 Belmont Avenue	18 Mo. SOL 12/22/2021	Precinct: 75		
Date/Time CV Reported Mon, 11/18/2019 11:00 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 11/18/2019 11:00 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Charles Barhold	01293	947981	075 PCT
2. POM Michael Amello	17857	949999	075 PCT
3. POM Luis Naranjo	29890	940499	075 PCT
4. LT Vincent Calderone	00000	936038	048 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Warren Hutchinson	21648	954952	075 PCT
2. POM Joseph Reyes	1060	955373	075 PCT
3. POM Yutaro Kotake	00452	959737	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Charles Barhold	Abuse: Sergeant Charles Barhold stopped § 87(2)(b)	A . Complainant Uncooperative
B . SGT Charles Barhold	Abuse: Sergeant Charles Barhold stopped § 87(2)(b)	B . Complainant Unavailable
C . POM Michael Amello	Abuse: Police Officer Michael Amello frisked § 87(2)(b)	C . Complainant Uncooperative
D . SGT Charles Barhold	Abuse: Sergeant Charles Barhold threatened to arrest § 87(2)(b)	D . Complainant Unavailable
E . SGT Charles Barhold	Discourtesy: Sergeant Charles Barhold spoke discourteously to § 87(2)(b)	E . Complainant Unavailable
F . SGT Charles Barhold	Abuse: Sergeant Charles Barhold interfered with § 87(2)(b)'s use of a recording device.	F . Complainant Unavailable
G . SGT Charles Barhold	Abuse: Sergeant Charles Barhold searched the vehicle in which § 87(2)(b) was an occupant.	G . Complaint Withdrawn
H . POM Michael Amello	Abuse: Police Officer Michael Amello searched the vehicle in which § 87(2)(b) was an occupant.	H . Complaint Withdrawn
I . POM Luis Naranjo	Abuse: Police Officer Luis Naranjo searched the vehicle in which § 87(2)(b) was an occupant.	I . Complaint Withdrawn
J . SGT Charles Barhold	Abuse: Sergeant Charles Barhold searched § 87(2)(b)	J . Complaint Withdrawn
K . SGT Charles Barhold	Abuse: Sergeant Charles Barhold failed to provide § 87(2)(b) with a business card.	K . Complainant Uncooperative
L . SGT Charles Barhold	Abuse: Sergeant Charles Barhold failed to provide § 87(2)(b) with a business card.	L . Complainant Unavailable
M . POM Michael Amello	Abuse: Police Officer Michael Amello failed to provide § 87(2)(b) with a business card.	M . Complainant Uncooperative

Officer(s)	Allegation	Investigator Recommendation
N . POM Luis Naranjo	Abuse: Police Officer Luis Naranjo failed to provide § 87(2)(b) with a business card.	N . Complaint Withdrawn
O . LT Vincent Calderone	Abuse: Lieutenant Vincent Calderone frisked § 87(2)(b)	O . Complainant Unavailable
P . LT Vincent Calderone	Abuse: Lieutenant Vincent Calderone searched § 87(2)(b)	P . Complainant Unavailable
Q . LT Vincent Calderone	Abuse: Lieutenant Vincent Calderone failed to provide § 87(2)(b) with a business card.	Q . Complainant Unavailable

Complaint Summary

On November 18, 2019, § 87(2)(b) called the CCRB and filed this complaint on behalf of himself, his girlfriend, § 87(2)(b) and his friend, § 87(2)(b). On November 7, 2019, § 87(2)(b) and § 87(2)(b) were sitting in § 87(2)(b)'s parked truck, in front of 998 Belmont Avenue in Brooklyn. § 87(2)(b) was sitting on the sidewalk nearby. § 87(2)(b) exited her truck to use the restroom at a nearby store. Sgt. Charles Barhold of the 75th Precinct stopped her, § 87(2)(b) and § 87(2)(b) **(Allegations A and B – Stop)**. PO Amello frisked § 87(2)(b) **(Allegation C – Frisk)**. As § 87(2)(b) recorded the incident from across the street, Sgt. Barhold said, “Mind your own business before we lock your ass up” **(Allegations D E, and F – Threat of Arrest, Discourtesy and Phone Interference)**. Additional officers arrived, including Sgt. Vincent Calderone, PO Luis Naranjo, PO Warren Hutchinson, and PO Yutaro Kotake, all of the 75th Precinct. Sgt. Barhold, PO Amello and PO Naranjo, searched § 87(2)(b)'s truck **(Allegations G, H, and I – Vehicle Search)**. Sgt. Calderone searched § 87(2)(b) and frisked § 87(2)(b) **(Allegations J and K – Search and Frisk)**. Sgt. Barhold and Sgt. Calderone searched § 87(2)(b)'s purse **(Allegations L and M – Search)**. The searches all yielded negative results. The officers did not provide the civilians with business cards **(Allegations N, O, P, Q, and R – Failure to Provide RTKA Business Card)**. PO Amello issued § 87(2)(b) a summons for § 87(2)(b) and the officers left. No arrests resulted from this incident.

This incident was captured on several officers' body worn cameras § 87(2)(g)

§ 87(2)(b) NYPD officer photos and memo book entries for all officers have been requested and will be added to the case file upon receipt.

On December 11, 2019, § 87(2)(b) was interviewed regarding this case and case # § 87(2)(b) § 87(2)(g)

Results of preparing the case for mediation

On July 29, 2020, Anthony Cennamo, in the Alternative Dispute Resolution (ADR) Unit, reviewed this case and put it into the mediation process. On that same date, Mr. Cennamo contacted § 87(2)(b) and § 87(2)(b) to inform them that their case was being processed. § 87(2)(b)

On July 29, 2020, § 87(2)(b) informed Mr. Cennamo that she did not want to proceed with the complaint because she did not have the time with a new born baby on the way and lost interest in the case as a result. § 87(2)(b) confirmed that she was withdrawing from the complaint of her own free will and was not coerced by anyone from the CCRB or NYPD.

§ 87(2)(b) received status update letters about his case every 30 days, starting from August 20, 2020. On October 14, 2020, § 87(2)(b) responded to these status update letters for the first and only time, contacting Mr. Cennamo to explain that he was unsure if he wanted to pursue his complaint. Ultimately, § 87(2)(b) did not want to close his complaint, and it was agreed that he will continue to receive status update letters every 30 days. Since October 14, 2020, § 87(2)(b) has not responded to any status update letters and has made no effort to contact the CCRB. On May 14, 2021 Mr. Cennamo conducted a search for § 87(2)(b) on

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the NYC Department of Correction's Inmate Lookup Service that yielded negative results. As of this date, § 87(2)(b) has not contacted Mr. Cennamo.

Mr. Cennamo added an updated copy of Sgt. Barhold, PO Amello, PO Naranjo and Lt. Calderone's CCRB histories to the case file. PO Naranjo and Lt. Calderone have not been named as subject officer's in any case since this complaint was file. Sgt. Barhold has been named as a subject officer in cases 201910276, 201910821 and 202003451, since this complaint was filed. PO Amello has been named as a subject officer in cases 201910276, 201910821, 202003067, and 202003451, since this complaint was filed.

Recommendation

Given the above and Mr. Cennamo's inability to contact § 87(2)(b) it is recommended that this case be closed as Complainant/Victim Unavailable.

Mediation Coordinator: Anthony Cennamo

Date: 5/14/21

Director of Mediation: Lisa Grace Cohen

Date: 5/19/21